

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISIDITION)

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No.32461 of 2023

Md. Omor Ali Howlader and others

.... Accused-Petitioners

-Versus-

The State and another

.... Opposite Parties

Mr. S.M. Aminul Islam, Advocate

.... For the accused-petitioners.

Mr. Sujit Chatterjee, D.A.G.with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Heard and Judgment on 20.02.2024

S M Kuddus Zaman, J:

This application under Section 526 of the Code of Criminal Procedure at the instance of the accused petitioner Nos.1 and 2 Md. Omor Ali Howlader and 2. Md. Kabor Hossain Hang of C.R. Case No.182 of 2019 (Airport) under Sections 467/468/471/420/109 of the Penal Code and C.R. Case No.07 of 2020 (Babugonj) under Sections 467/468/471/109 of the Penal

Code for transfer of above two cases in one competent Court for simultaneous trial.

Mr. S.M. Aminul Islam, learned Advocate for the petitioners submits that the petitioners are accused Nos.1 and 2 of above two C.R. Cases which are pending for trial in the Court of Chief Metropolitan Magistrate, Barishal and Chief Judicial Magistrate, Barishal respectively. It is inconvenient for both the accused and the complainant of above cases as well as the witnesses to have both the cases which arose out of an identical land dispute two prosecute above cases in two separate Courts. The ends of justice will be met and convenience of both the parties and witnesses will be ensured if both above C.R. Cases are tried by one competent Court simultaneously.

Mr. Md. Jahirul Islam, learned Advocate for the opposite party Nos.2 and 3 submits that the opposite parties are complainant in above mentioned two C.R. Cases which are pending for trial in the Court of Chief Judicial Magistrate, Barishal and Chief Metropolitan Magistrate, Barishal, one each in above Courts. If both the cases are tried by one competent Court simultaneously that will ensure convenience for both the parties

and the witnesses. The learned Advocate further submits that he concurs with the submissions of the learned Advocate for petitioner and this Court may pass an order by way of transfer of above cases to a competent Court for simultaneous trial.

We have considered the submissions made by the learned Advocates for the respective parties and carefully examined all materials on record.

It turns out from the record that C.R. Case No.182 of 2019 (Airport) and C.R. Case No.07 of 2020 (Babuganj) arose out of a land dispute and petitioners are accused persons and the opposite parties are the complainants of above two cases. The learned Advocates for both the sides have concurred that instead of trial of above two cases in two separate Courts of Chief Metropolitan Magistrate, Barishal and Chief Judicial Magistrate, Barishal convenience of both the parties and the witnesses will be ensured if both above cases are tried by one competent Court simultaneously. Section 526 of the Code of Criminal Procedure provides for transfer of cases from one Court to another Court under different Session Divisions by this Court if that transfer ensures convenience of the parties and the witnesses.

In above view of the materials on record we find substance in this application under Section 526 of the Code of Criminal Procedure and the Rule issued in this connection deserves to be made absolute.

In the result, the Rule is made absolute.

Let C. R. Case No.182 of 2019 (Airport) be withdrawn from the Court of Chief Metropolitan Magistrate, Barishal and be transferred to the Chief Judicial Magistrate, Barishal for simultaneous trial by one competent Judicial Magistrate with C.R. Case No.07 of 2020 (Babugonj).

However, there is no order as to costs.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.

*MD. MASUDUR RAHMAN
BENCH OFFICER*